

25STCV19071 25STCV19071

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13 TENTATIVE RULING 9:15 a.m., Tuesday, July 7, 2026

DANIELLE UWAOMA v. WILSHIRE CREST HOTEL, et al. [25STCV19071]

DEMURRER TO THE COMPLAINT OF DEFENDANT THE WILSHIRE CREST HOTEL, LLC

MEET AND CONFER: DEFECTIVE The Hotel's counsel attempted to meet and confer by telephone, left two voicemail messages for Plaintiff's counsel, and sent two emails to Plaintiff's counsel, but it does not appear that Plaintiff's counsel responded to the meet and confer attempts. (Fischer Decl., ¶ 5.)

BACKGROUND: Complaint alleges battery, negligence, premises liability, IIED, fraud, etc. arising from bedbug bites during hotel stay

TIMELINE:

7/28/2023: Plaintiff Danielle Uwaoma ("Plaintiff") checks into Defendant Wilshire Crest Hotel (the "Hotel") and is assigned to a guest room. Plaintiff alleges that Defendants Joseph Tomaszewski ("J. Tomaszewski") and Guerta Tomaszewski ("G. Tomaszewski") own, operate, and manage the Hotel.

7/29/2023: Plaintiff discovers that she has bed bug bites across her body. Plaintiff immediately reports the bites to the Hotel's front desk staff, and the staff reassigns Plaintiff to a new guest room.

7/30/2023: Plaintiff checks out of the Hotel.

8/4/2023: When Plaintiff seeks medical treatment, she is diagnosed with bed bug bites and is prescribed medication. Plaintiff alleges that she still has physical scars and emotional distress from the bites.

6/30/2025: Plaintiff files the Complaint, alleging causes of action for:

Battery

Negligence

Premises Liability

Intentional Infliction of Emotional Distress ("IIED")

Fraudulent Concealment

Private Nuisance

Public Nuisance

Breach of Contract

6/5/2026: The Hotel files this Demurrer. As of 7/2/2026, Plaintiff has not filed an Opposition.

TENTATIVE RULING: DEMURRER TO THE COMPLAINT OF DEFENDANT THE WILSHIRE CREST HOTEL, LLC is OVERRULED in part, SUSTAINED with LEAVE TO AMEND in part, and SUSTAINED without leave to amend in part.

I. DEMURRER

The Hotel demurs to the first, fourth, fifth, and sixth causes of action in Plaintiff's Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f) on the grounds that Plaintiff fails to state a claim against the Hotel and that the claims are so uncertain as to preclude the Hotel from meaningfully responding to said claims.¹

1st Cause of Action: Battery — OVERRULED

Plaintiff's battery claim is adequately pled. "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (Yun & Hee & So v. Sook & Ja Shin (2013) 212 Cal.App.4th 652, 669; see CACI, No. 1300.) "[T]he element of intent is satisfied if the evidence shows defendant acted with a 'willful disregard' of the plaintiff's rights." (Ashcraft v. King (1991) 228 Cal.App.3d 604, 613.)

Here, Plaintiff alleges that the bed bug bites constituted a harmful or offensive contact with her body and that the Hotel acted with intent by recklessly failing to warn Plaintiff of the dangerous bed bug infestation despite its prior knowledge of the infestation. (Compl., ¶¶ 49-50.) The Hotel argues that Plaintiff fails demonstrate the intent element of her claim because Plaintiff has not alleged that an authorized representative of the Hotel acted with the requisite intent to harm or offend. "Typically, a corporation may be liable for employee misconduct under a respondeat superior theory." (C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110.) "As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort." (Ibid.)

In this case, Plaintiff expressly alleges that Defendants, including the Hotel's owners and managers J. Tomaszewski and G. Tomaszewski, in the management of their hotel's housekeeping and maintenance both authorized and ratified the Hotel staff's failure to ensure sanitary conditions in the Hotel, including the failure to regularly change bed sheets and bed skirts, to inspect bed mattresses and headboards, and to specifically inspect for bed bugs. (Compl., ¶¶ 33, 35-36.) Plaintiff further alleges that the Hotel's managers failed to take action to investigate and discipline housekeeping and maintenance staff when informed of prior bed bug infestation incidents. (Id. ¶ 34.) Plaintiff also alleges that the Hotel, through its managers, knew of the bed bug infestation and nevertheless failed to take the necessary steps to eliminate the infestation, thereby causing Plaintiff to be bitten. (Id. ¶¶ 54-56.) These allegations are sufficient, for pleading purposes, to demonstrate that the Hotel's managers (who are specifically named as defendants) knowingly authorized and ratified the tortious conduct of their housekeeping and maintenance employees. Such allegations support a showing that the Hotel's managers acted in reckless and willful disregard of the offensive and harmful contact to Plaintiff. (Id. ¶¶ 37-39, 49, 52-54.) Accordingly, the Hotel has not shown that Plaintiff fails to adequately plead the intent element of her battery claim.

Therefore, the Hotel's demurrer to the first cause of action for battery is **OVERRULED**.

4th Cause of Action: IIED — SUSTAINED with LEAVE TO AMEND

Plaintiff's IIED claim is inadequately pled. To establish a cause of action for IIED, a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Talice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.) To be "outrageous," conduct must be so extreme as to exceed all bounds of decency in a civilized community. (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001.)

Here, Plaintiff alleges that Defendants collectively chose not to eradicate the Hotel's bed bug infestation, which caused Plaintiff emotional harm, in willful disregard of their knowledge of prior infestations in the Hotel and in Plaintiff's guest room. (Compl., ¶¶ 86-87.) Once again, the Hotel argues that Plaintiff has not alleged facts which establish that the Hotel's authorized representatives acted with the requisite intent to cause Plaintiff emotional harm. For the same reasons discussed above with respect to Plaintiff's battery claim, however, the Court disagrees.

Next, the Hotel also argues that Plaintiff fails to adequately plead that she suffered the level of severe or extreme emotional distress as a result of the bed bug infestation that is necessary to support a claim for IIED. On this point, the Court agrees. IIED results when a defendant's conduct "has a severe and traumatic effect on the plaintiff's emotional tranquility." (Kraslawsky v. Upper Deck Co. (1997) 56 Cal.4th 179, 194.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Here, Plaintiff merely alleges that she has suffered "present and ongoing emotional distress." (Compl., ¶ 86.) Plaintiff also alleges that she incurred medical expenses as a result of the Hotel's conduct. (Id. ¶ 94.) These limited, vague facts fail to demonstrate the heightened level of "severe and traumatic" effects on Plaintiff. Merely alleging that a plaintiff is suffering from distress (even where the distress leads to physical or medical symptoms) without identifying how the emotional distress was severe and pervasive in quality and quantity is insufficient to survive the demurrer stage. (Kiseskey v. Carpenters' Trust for So. California (1983) 144 Cal.App.3d 222, 232 ["testimony of plaintiffs that they were 'upset' and 'disturbed' and 'furious' did not meet the requisite test" for severe emotional distress]; see Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376 [evidence of losing sleep, upset stomach and anxiety did not constitute severe emotional distress of such lasting and enduring quality that no reasonable person should be expected to endure].) Accordingly, the Court finds that Plaintiff fails to state a claim for IIED.

Therefore, the Hotel's demurrer to the fourth cause of action for IIED is **SUSTAINED with LEAVE TO AMEND**.

5th Cause of Action: Fraudulent Concealment — OVERRULED

Plaintiff's fraudulent concealment claim is sufficiently pled. "[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Blickman & Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868, internal citation omitted.) "California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43 (Rattagan).) "The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Here, Plaintiff alleges that the Hotel failed to warn her regarding the dangers of the bed bug infestation in her guest room. (Compl., ¶ 99.) More specifically, Plaintiff alleges that the Hotel's "front desk personnel, hotel management, and housekeeping staff" were aware of the bed bug infestation and that the Hotel's front desk personnel, who were authorized to speak on behalf of the Hotel, intentionally failed to disclose the bed bug infestation to Plaintiff during check-in. (Id. ¶¶ 29, 101-103.) These allegations adequately demonstrate who omitted the information from Plaintiff and their authority to speak on behalf of the Hotel (i.e. the front desk staff), what facts were not disclosed (i.e. the existence of an unresolved bed bug infestation), where and when the omission occurred (i.e. during the Hotel check-in process), and to whom they spoke (i.e. Plaintiff). Plaintiff also expressly alleges that the Hotel intended to deceive Plaintiff by taking advantage of Plaintiff's lack of knowledge about the infestation in order to profit from her hotel stay. (Id. ¶ 108.) Although the Hotel argues that Plaintiff has not alleged facts establishing how the Hotel's management was aware of the bed bug infestation, Plaintiff specifically alleges that the Hotel's managers knew about the infestation based on their continuous monitoring of online guest reviews notifying the Hotel of bed bugs found at the Hotel. (Id. ¶¶ 26-27, 98, 100.) Taken together, the Court finds that these factual allegations are sufficiently specific to state a cause of action for fraud at the pleading stage.

Therefore, the Hotel's demurrer to the fifth cause of action for fraudulent concealment is **OVERRULED**.

6th Cause of Action: Private Nuisance — **SUSTAINED** without leave to amend

Plaintiff's private nuisance claim is inadequately pled. To plead a claim for private nuisance, a plaintiff must allege that: (1) the defendant interfered with the plaintiff's use and enjoyment of the plaintiff's property, (2) the invasion of the plaintiff's interest in their use and enjoyment of the land was "substantial" (i.e. it caused plaintiff to suffer substantial actual damage), and (3) the interference with the plaintiff's protected interest was "unreasonable" (i.e. it must be of such nature, duration, or amount as to constitute unreasonable interference with the plaintiff's use and enjoyment of their land.) (San Diego Gas & Elec. Co. v. Superior Ct. (1996) 13 Cal. 4th 893, 938.)

Here, the Hotel argues that Plaintiff cannot state a private nuisance claim because Plaintiff does not have an interest in the property at issue (i.e. her guest room in the Hotel). (Compl., ¶ 117.) "Although 'any interest sufficient to be dignified as a property right' will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger or employee." (Venuto v. Owens-Corning Fiberglas Corp. (1971) 22 Cal.App.3d 116, 125.) Here, Plaintiff's allegation that she was a guest of the Hotel does not establish any interference with Plaintiff's property right as a matter of law. Even if given the opportunity to plead additional facts, Plaintiff will be unable to cure this pleading defect.

Therefore, the Hotel's demurrer to the sixth cause of action for private nuisance is **SUSTAINED** without leave to amend.

II. REQUESTS FOR JUDICIAL NOTICE

The Hotel requests judicial notice of the following court documents in support of its demurrer:

Plaintiff's Complaint in this action

Plaintiff's Proof of Service as to the Hotel, filed 2/13/2026

The Hotel's Articles of Organization, filed with the California Secretary of State in 2012

The Hotel's 2023 and 2025 Statements of Information, filed with the California Secretary of State, reflecting that Aaron Tomaszewski was the Manager of the Limited Liability Company and the agent for service of process at all relevant times.

The Hotel also requests judicial notice of the fact that no default or default judgment has been entered against the Hotel as of 6/8/2026.

The Court takes judicial notice of Requests No. 1, 2, and 5 pursuant to Evidence Code section 452, subdivision (d) and of Requests No. 3 and 4 pursuant to Evidence Code section 452, subdivision (c).

Defendant The Wilshire Crest Hotel, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 7/6/26 at 2 p.m.